

24VECV02686 24VECV02686

County: los-angeles

Division: Civil Law and Motion

Department: T

Hearing date: 2026-08-17

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=NW%20%2CT%2C08%2F17%2F2026

Source SHA-256: a0e492caeb718b52cc9b8fb871614a8882ec5baacc3c3deb3946dfa22554e9ee

Case Number: 24VECV02686 Hearing Date: August 17, 2026 Dept: T

24VECV02686 SPIRIDON V FIEBELKORN

FOR THE FSC

COUNSEL, PARTIES, AND WITNESSES ARE REQUIRED TO COMPLY WITH ALL LOCAL RULES BUT THE COURT REITERATES THESE SPECIFIC LOCAL RULES:

3.183 OBJECTIONS TO CLOSING ARGUMENT Any objection to a closing argument should be argued outside the jurors' hearing at the side bench. If the trial judge is uncertain about whether there has been a misstatement of the evidence in final argument, the jurors may be advised to consult their own memories and notes. (Rule 3.183 new and effect

3.112 EFFECT OF ASKING ANOTHER QUESTION Counsel must not repeat the witness' answer to the prior question before asking another question. Counsel must wait until the witness has completed the answer before asking another question. If counsel asks a new question before the witness answers the pending question or an objection thereto is ruled upon, counsel will be deemed to have withdrawn the earlier question. This applies to voir dire.

3.158 USE OF DEPOSITIONS, INTERROGATORIES AND REQUESTS FOR ADMISSION Before reading into evidence any portion of any deposition, interrogatory or request for admission, or showing any video deposition, counsel must obtain leave of court and must then advise the court and opposing counsel which pages and lines of the deposition or the numbers of the interrogatories or requests for admission are to be read. Prior to such reading, opposing counsel must be given a reasonable opportunity to read the same and interpose any objections thereto. If counsel intends to read multiple

interrogatories into evidence, that counsel should make extracts of the pertinent portions of questions and answers and furnish sufficient copies for adversaries and the court before reading. Those extracts should be prepared in a form so that the question answered immediately precedes the answer and the date or other description of the particular set of interrogatories appear on the extract. The same procedure will apply to requests for admissions and responses thereto.

3.120 POLICY AGAINST INDICATION AS TO TESTIMONY Persons in the courtroom, including the parties and counsel, must not indicate, by facial expression, shaking of the head, gesturing, shouts, or other conduct their disagreement with or approval of testimony or other evidence. Counsel must so instruct parties they represent, witnesses they call, and any persons accompanying them.

3.125 OFFERS TO STIPULATE TO BE OUT OF JURY'S HEARING Offers to stipulate must be made outside the hearing of jurors. While the court is in session, counsel wishing to stipulate must first obtain leave of court and then confer with other counsel outside the hearing of the jurors. Do not solicit a stipulation in front of the jury.

3.131 COUNSEL'S DEMONSTRATING OR DISPLAYING REPRESENTATIONS OF TESTIMONY TO THE JURY DURING PRESENTATION OF EVIDENCE Without the consent of the trial judge, counsel may not, during presentation of evidence, summarize, diagram, calculate, or outline testimony or evidence in a manner displayed to the jury. This includes, but is not limited to, using a chalkboard, paper on a bulletin board, overhead projection device, computer or other word processing device to be projected onto a screen, or any other technology.

3.47 MULTIPLE COUNSEL

- **MOTIONS** In the absence of permission by the court, only one attorney for a party may present oral argument on a motion, application, or issue. Upon the request of a party, the court may, in its discretion, allow more than one attorney per party to argue. In making the request, counsel may present the issue of providing an opportunity for a less experienced attorney.

3.96 ADDRESSING OTHERS During trial, counsel must not exhibit familiarity with witnesses, parties or other counsel, nor address them by use of first names (except children).

Motions in Limine

All rulings on all MILs apply with equal force to all parties, all counsel, and all witnesses.

Counsel are required to advise their clients and witnesses of the rulings on the MILs and are responsible to assure that they, their clients, and their witnesses do not violate the court's orders. Failure to comply with the court's MIL orders may result in sanctions or mistrial.

Plaintiff's MILS

1. To exclude

evidence of surveillance video: It depends on what was requested in discovery. More information is needed. If there was an insufficient answer to discovery on this issue, then no if no motion was filed. If it is a straight out lie under oath, then probably. It depends on the discovery, when the surveillance was taken, and the response to the discovery.

2. To exclude

testimony of future collateral source benefits: GRANT unless it is held to a reasonable degree of probability. There shall be no mention of this issue until approved by the court.

3. The

exclude evidence of Medicare reimbursement rates: It depends. If Medicare rates are used in table showing costs, then it can be used. But it cannot be used solely to discount the value of services on its own.

4. Kennemur

motion: Deferred until made at trial. Be prepared to list what opinions were given and how this differs.

5. To exclude

from testifying, eliciting, or introducing testimony based on hearsay within medical records or other source: Deny in part. An expert may testify to what he or she relied upon. The expert cannot testify to the specific case specific hearsay.

If the source of the entry in the record testifies, then it would depend on what the source is asked.

6. To exclude

evidence of defendant having to pay judgment or inability to pay judgment: The court orders that there be no mention of the wealth or poverty of any party, or witness. However, the issue of who has to pay the judgment should not come up at all as it is not relevant to any decision that the jury has to make. If there is an award against defendant, there will be a judgment against defendant which is true. What happens after that is not an issue in the case nor should the jury be caused to speculate about insurance.

7. To exclude apologies from defendant or

defense counsel to plaintiff in front of the jury: GRANT. That is not an issue in the case. However, it is equally true that plaintiff cannot say that defendant has refused to accept responsibility or anything of that nature.

8. To exclude

evidence that the plaintiff was referred to a doctor by their attorney and that treatment was on a lien: Deny as to whether treatment was on a lien basis.

Grant that plaintiff cannot be asked if the attorney referred them to the doctor as that is covered by attorney client privilege, but otherwise, deny if the information comes from someone else because it is relevant to issues of credibility of the doctor and the plaintiff in the case.

Defendant's MILS

1. To exclude

reference to liability insurance: GRANT

2. To prevent

plaintiff from arguing an improper standard of care: This is a reptile theory and golden rule motion which is granted. There shall be no mention of community safety or community standards, or of protecting the community or punishing defendant, or of "sending a message." The same applies as to calling the standard of care "safety standards" as that is a misstatement of

the law which can result in a mistrial.

There can be no attempt to appeal to the subjective interests of the jury. The same applies to asking the jury to make decisions based on the safety of the community. See below:

There shall be no questions or argument suggesting that this case refers to "community" standards or may have a direct effect on the community or the rights of jurors.

Nor shall there be any questions or argument that the jurors are to imagine themselves in the shoes of the plaintiff. Please review: *Allen v. Patel* 117 Cal.App.5th 432, 2025 WL 3718739 (4th Dist. Ct. App. 2025).

This is controlling law.

"1. Golden Rule Violation

Before the trial, the trial court heard defendant's MIL

1, in which defendant requested that the trial court exclude evidence and arguments based on the golden rule and reptile theory. The trial court initially deferred ruling on MIL 1, as to the golden rule, until it became an issue during the trial. Later in the trial, the trial court granted defendant's objection to Blue's closing argument on the ground it violated the golden rule.

During closing argument, when asking the jury to compensate Allen for her injuries, Blue requested the jury to imagine the following scenario: "There is a big limousine that drives up into the parking lot, and it parks right next to the U-Haul. And out of that limousine comes a person really well dressed, perfect suit, perfect socks, perfect shoes. Six other people and they all have black briefcases, shiny black briefcases. They walk down the corridor to Room 163, and they knock on the door and get past Mr. Mejia and Mr. Patel. And they all walk in and open the door. . . . [] First guy, the main guy comes, and he has this big shiny briefcase. And he sees Ms. Allen, and he opens [h]is briefcase. There is a crisp \$100 bill, all of the briefcases, \$6,000,000. And he shows it. . . . He says Ms. Allen, this is for you. You can have every one of these. You can do whatever you want with these. It's yours. Take it for the rest of your life." Defendant objected at this point, stating "[g]olden rule." The trial court overruled the objection.

Blue continued: "So the man closes the briefcase and puts it down and says to Ms. Allen 'You can have that, but I'm going to want

something. I'm going to take every single thing that matters to you. I'm going to take your husband and all that love that you have enjoyed. I'm going to take your dignity. I'm going to take your calm. I'm going to take everything that matters to you. You will never have that again ever. And I'm going to leave this briefcase outside the door because you don't have a choice. [] Now, in the beginning of this case I had mentioned compensation is an equal fair value." Defendant again objected, stating "[g]olden rule." The trial court sustained the objection and instructed the jury not to consider the discussion regarding "the briefcase and the money inside."

The trial court concluded during the MNT hearing and in its statement of decision, that Blue violated the court's order not to violate the golden rule, when Blue made the above analogy. In effect, Blue asked the jury if it would accept \$6,000,000 in exchange for being put in Allen's position. A "golden rule" argument is one where "counsel asks the jurors to place themselves in the plaintiff's shoes and to award such damages as they would 'charge' to undergo equivalent pain and suffering." (Beagle v. Vasold (1966) 65 Cal.2d 166, 182, fn. 11; see Cassim, supra, 33 Cal.4th at p. 797.)

Making a golden rule argument is improper because "[t]he jury must impartially determine pain and suffering damages based upon evidence specific to the plaintiff, as opposed to statistical data concerning the public at large. The only person whose pain and suffering is relevant in calculating a general damage award is the plaintiff. How others would feel if placed in the plaintiff's position is irrelevant.[] It is improper, for example, for an attorney to ask jurors how much 'they would "charge" to undergo equivalent pain and suffering.' [Citation.]" (Loth v. Truck-A-Way Corp. (1998) 60 Cal.App.4th 757, 764-765, fn. omitted.) A golden rule argument, ""in effect asks each juror to become a personal partisan advocate for the injured party, rather than an unbiased and unprejudiced weigher of the evidence. Finally, it may tend to induce each juror to consider a higher figure than he otherwise might to avoid being considered self-abasing."" (Id. at p. 765, quoting Neumann v. Bishop (1976) 59 Cal.App.3d 451, 484- 485.)

Here, Blue violated the golden rule during closing argument by suggesting that when considering the amount of fair value compensation Allen should receive for her losses, the jurors should imagine what it would be like to be forced to accept the loss of "every single

thing that matters" to them in exchange for a briefcase full of money.

Reptile Theory

Blue also committed misconduct by violating the reptile theory doctrine during closing argument. The court made it clear during the hearing on MIL 1 that reptile theory arguments were improper. Reptile theory arguments attempt to appeal to a jury's emotions by arguing a defendant's conduct threatens the community's safety. (*Regalado v. Callaghan* (2016) 3 Cal.App.5th 582, 599.) A violation of the reptile theory occurs when counsel asks jurors to base their decisions on concerns about their own safety and the safety of the community rather than the applicable standard of care. (*Id.* at pp. 598- 30 599 [closing argument remarks telling jury its function was to keep the community safe were improper]; *Cassim, supra*, 33 Cal.4th at p. 796 [arguments appealing to the self-interests of jurors are improper because they tend to undermine juror impartiality].)

Blue began his opening statement by stating, "I'm scared. I couldn't sleep last night because I'm scared. It's an enormous obligation to represent somebody who cannot represent themselves. . . . I'm shaking. My knees are shaking. . . . It's a privilege of a lifetime . . . when you believe in somebody. My fear is that I have not done a good enough job to represent that person the way that person deserved to be represented that I have failed. And at some point, I'm going to hand this case . . . to you for you to take this case for me. And that scares me to death."

Blue then told the jury it had "an opportunity to make a difference. We go through life, try to set an example, try and do the right thing. Maybe somebody will see. Maybe our children will see. Maybe our students will see. But seldom do we have an opportunity to defend our community, to champion our community, to stand as the last bastion for what we will tolerate for our community. Will we tolerate men coming into a room with a vulnerable woman, the most vulnerable of us and put their hands on her? Will we tolerate that? That decision is going to be your decision in just a few moments."

Blue noted that "we are stuck with a money justice system. . . . Mr. Patel will not serve a day in jail aside from any potential charges that may be filed against him in criminal court, but that's not for us. [] Here in this civil justice system, Mr. Patel will not serve a day in jail.

Judge Sachs will not call the deputies to have him escorted. The deputies won't take Mr. Patel out to the public square and have him flogged. Mr. Patel will not be escorted to the front of the courthouse to wear a sign that says, 'Shame on me.' None of that is going to happen. It's just money, dirty money." Blue added that "all we have to ask for is money."

Blue further told the jury: "We have the power to decide what is right. We have the power to decide what is just. We have the power to claim to the world that in this community a person cannot put their hands on another person. We have that power, and we can proclaim it. . . . [] So ultimately the power is yours. And that power extends into the future to protect the innocent of your community. It's up to you. Do you want to protect the most vulnerable, the innocent? Do you want to protect the members of your community from someone just putting their hands on you?" Blue added that Allen's attempt to stay at the Hotel without paying rent "doesn't give a person a right to put their hands on her. . . . It's up to you. It's up to you to exercise that power. It's up to you. And the opportunities are so few, so few to go and apply that power to make a change to make a real change to protect your community. And in so doing I believe that in so doing I believe fulfill your destiny. It's why we are here. These opportunities are so few. We ought not to waste them. Fate chooses a precious few."

Blue also told the jury that the court reporter was recording everything "because it's a historical record. It's a record to show what happened here on this day in this courtroom in this community. Your grandchildren's grandchildren will be able to come here and see what happened on this day. You can see the defenders of a community tell a person you cannot put his hands on a member of the community" We conclude the trial court reasonably found during the MNT hearing and in its statement of decision that Blue violated the reptile theory by telling the jury it had "the power to claim to the world that in this community a person cannot put hands on another person." Blue's closing arguments improperly urged the jury to enter a verdict against defendant as a way of protecting the community from harm, in violation of the reptile theory. "

3. To

preclude preconditioning of the jury as to the dollar amount of damages:

Defendant appears to have intentionally misrepresented the applicable law. Defendant well knows that the law in California is that plaintiffs have the right to question the jury on numbers. However, the court

significantly restricts this right to mentioning "a" dollar amount to non in the mini opening, once in voir dire, and once in opening statement. Under no circumstances may plaintiff's counsel repeat the number over and over again.

4. To exclude

settlement discussions and negotiations: GRANT.

5. To exclude

the introduction of undisclosed witnesses and evidence: DENY unless there is something specific. Defendant knows who plaintiff's witnesses are and what plaintiff's exhibits are. If there is some particular person or thing that this motion applies to, please state is. Otherwise this is an unnecessary boilerplate motion.

6. To exclude

"new issues," to exclude witnesses from the courtroom, and to dismiss

Does. DOES are dismissed at the end of

the case. Witnesses will be excluded

except for the plaintiff and the defendant.

The witnesses or attorney's staff may log into court connect to listen

or watch any part of the trial. As to

"new issues," make the objection if it comes up.

7. To

preclude use of video excerpts in opening statements: GRANT. This is consistent with the court's local rules.

8. To

preclude use of the cost of repairs: GRANT.

9. To

preclude evidence of unpaid bills without proper foundation and testimony: The court will follow the law on this issue.

10. To preclude

medical evidence based on possibility rather than probability: GRANT.

11. To exclude

evidence of medical records or bills except through expert testimony: Deferred until specific questions are asked.